

Ram Shringar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 May 2011 · Writ-C No. 29485 of 2011 · **Writ disposed of; 2011 bill remitted to CGRF under clause 7.10.**

HEADNOTE

Where a consumer had paid the permanent-disconnection fee in 2004 and no bills followed until a sudden 2011 demand, the High Court declined to compel payment of the disputed amount, directed the consumer to keep it in a separate account, and remitted the billing dispute to the Consumer Grievances Redressal Forum under clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005, for hearing and decision within two months.

FACTUAL SUMMARY

Ram Shringar paid Rs. 8,366 on 15 June 2004 and Rs. 275 on 17 June 2004 towards permanent disconnection of his electricity supply, and asserted that the connection was then permanently disconnected. In 2011 the electrical authority raised a bill of Rs. 79,414. The authority's counsel submitted that only the disconnection fee had been received on 17 June 2004 and that permanent disconnection was never effected. No bill had been issued between 2004 and the 2011 demand. The consumer challenged that demand by writ petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF for disputed bill after claimed permanent disconnection

HOLDING

The Court was hesitant to accept that permanent disconnection had not been effected when no bill was raised from 2004 until a sudden 2011 demand of Rs. 79,414, which did not appear reasonable. It declined to direct the petitioner to pay that amount, directed him to keep it in a separate account, and remitted the dispute to the Consumer Grievances Redressal Forum under clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005, for hearing and resolution within two months of communication of the order. The writ petition was disposed of without costs. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PERMANENT DISCONNECTION WAS EFFECTED IN JUNE 2004 AND WHETHER THE 2011 DEMAND OF RS. 79,414 IS RECOVERABLE

Remitted to the Consumer Grievances Redressal Forum under clause 7.10 for hearing and decision. ¶ 1